Contravene Banning Notice Full

[Judge]

Do I get to call Ms. Kondratenko back in, please?

[Prosecution]

I think I'm grumbling. She said she was just ringing a lawyer friend. Oh, sorry.

[Judge]

I'll be back. Mr. Kondratenko, I've just been told that there aren't any subpoenas. No subpoenas have been issued with respect to this matter.

Hang on, there's a summons kicking here. Hang on a minute. To Chris Park.

[Kosta Kondratenko]

Yes, and Sandy Talese.

[Judge]

And there is a summons to Sandy Talese. So...

[Kosta Kondratenko]

That's...

[Judge]

What are you doing?

[Kosta Kondratenko]

So that's the gentleman who served the subpoena. I only... Because before it had been said that it wasn't served, so I wanted to get him to give the...

[Judge]

That's what I was just going to ask you. There's no affidavit of service.

[Kosta Kondratenko]

Affidavit of service? My friend can... No.

So the affidavit was lodged, the summons was lodged along with the affidavit.

[Judge]

No.

[Kosta Kondratenko]

Yes.

[Judge]

No. There is a summons...

[Kosta Kondratenko]

Yep.

[Judge]

To Mr. Chris Park and Ms. Sandy Talese.

[Kosta Kondratenko]

Yep.

[Judge]

Of 76 Appel Street, Surface Paradise. Mm-hmm. Dated 15 January 2024.

But... The summons says you're required to give evidence for the prosecution. That's what the summons says.

Police will pay your entitlements, et cetera. So that's wrong. There's no service on the file.

So that's a problem, because if I don't have proof that these people have actually been given these things, then I don't know what they've got. I've got an oath of service that's just landed on the file from the 6th of February. Saying that a person called Adam Watson...

Yes. ...served Mr. Park and Ms. Talese.

[Kosta Kondratenko]

That's correct.

[Kosta Kondratenko]

I was videoing the service as well.

[Judge]

Sorry, say that again?

[Kosta Kondratenko]

I was videoing the service. So this is Mr. Watson on the phone now, and he can clarify as well. He's a...

He was the person that served the documents.

[Judge]

Well, I've got the service. I'm just about to get you the score, because I'm just going to have to take the file apart to do that.

[Kosta Kondratenko]

Sorry, thank you.

[Judge]

No, that's all right.

[Kosta Kondratenko]

I apologize for the quote. I don't want to be ahead of this, because they were saying that there was no summons. So I wanted to get rid of this.

[Judge]

I don't know how these summonses got accepted for filing, because they're not signed. All right. Copy these, please, Jenna, for Ms. Gorek. Make a copy of them as well for Mr. Kondratenko. Ms. Gorek, there is a document on the file that must have been sent by the defendant. It's a Residential Tenancies Authority document that is a notice to leave rooming accommodation, which appears to me to be the document that he's relying on as to his right to be there on the 23rd of October.

It does say that the notice itself was issued on the 22nd of October, but he was to vacate the property by 5 o'clock on the 24th of October.

[Prosecution]

There was then an incident in the day on the 23rd of October. There was another ticket given for a different event earlier on in the day, around 2.30pm, and at the same time he was given a ticket for an event and also a police banning notice because of his conduct, and he was also evicted from the hostel. It's a hostel.

[Judge]

Yes, I know it's a hostel.

[Prosecution]

And he was evicted for his behaviour.

[Kosta Kondratenko]

Your Honour, that's pretty much all. She's making claims of having...

[Prosecution]

It would be a civil issue to go through QCAT, whether he was wrongly evicted by the owners of the hostel, which is, I think, what he wants to ventilate here in court today, was that he was wrongly evicted. The police were told by the managers of the hostel he was evicted. They assisted in the eviction.

He's been given a police banning notice. There's nothing unlawful... It's a QCAT error.

Sorry, not error. It's a QCAT matter and civil matter as to whether he was wrongly evicted and owed compensation by the hostel or...

[Judge]

The breach of the banning notice.

[Prosecution]

The banning notice was lawfully given and was not complied with. And it's not charging a trespass for being back at the hostel. It's...

[Judge]

It's only the breach of the banning notice.

[Prosecution]

Yes.

[Kosta Kondratenko]

Your Honour, I'm going to speak... The prosecution... Thank you so much.

The prosecution is referring to things that I haven't had a trial for. It's innocent until proven guilty, so I'm not...

[Judge]

No, no, the prosecution is not referring to...

[Kosta Kondratenko]

So I'd like it stricken...

[Judge]

The prosecutor is saying that there are two issues. One of them is related to the criminal offence that's before the court and the other is a civil matter that ought be before QCAT. Not here.

Sure. And you don't get to tie the two things together in this court with respect to the breach of the banning notice.

[Kosta Kondratenko]

So I understand that QCAT is separate from the criminal court 100%. What's a question here is whether the police officer lied and whether the police officer was within his jurisdiction to evict me when I was...

[Judge]

That's fine, but those are things that you can put to him as he is called to give evidence.

[Kosta Kondratenko]

I just don't feel I'll get a fair trial unless I get the two witnesses that I've asked the court for.

[Judge]

Well, OK. And I just feel that's... I'm going to hear now from Ms Gorrick.

Ms Gorrick, with respect to the summons, the two summonses that have been issued, one to Mr Park and one to Ms Tulisi...

[Prosecution]

They're entirely deficient, Your Honour. They can't state that you're a witness to the prosecution. I spoke with the arresting officer who did say at some point he received a phone call from Sandy saying, have I been summonsed as your witness?

So he may have possibly advised her, no, the police have not summonsed you as a witness, and therefore it's a deficient document.

[Judge]

The problem that you've got here, Mr Kondratenko, is that the summonses on their face and the documents that have been served indicate that each of these witnesses was

required to come to court today, but that they were required to come to give evidence for the prosecution. That's what the summonses say. Well...

They're not required to give evidence for the prosecution, so the summons is wrong. And if, which appears, that they've spoken to the arresting officer about whether they are required to come and give evidence for the prosecution and have been told, no, they don't, they're not here.

[Kosta Kondratenko]

Well, that's the issue that I have.

[Judge]

But the issue is that you've created this problem by issuing a summons that's wrong on its face about what's going on.

[Kosta Kondratenko]

But, well, my question is, if the summons to appear is made on behalf of the prosecution, why would the court accept and stand with them if I'm not the prosecution?

[Judge]

That's right. Well, I don't know who the registry thought you were or what they thought they were doing.

[Kosta Kondratenko]

I presented myself as...

[Judge]

It doesn't matter. None of that matters. The witnesses have not been properly summonsed to court.

They are not being asked to come to court on behalf of the prosecution. There is no allowances or any kind of monies payable with respect to their attendance at court by the prosecution. That is not the case.

[Kosta Kondratenko]

My understanding of the oath of service is that these were my witnesses and the court told me...

[Judge]

No, no, I'm not worrying about the service. I'm not arguing with you about the service

anymore. I'm arguing with you about the nature of the summons.

That is wrong. That should not have been issued. So I'm not...

...to bring them before the court on a summons that was wrongly issued and for reasons that are also wrong. That you have no right to even seek to issue that summons on behalf of the prosecution. That's what it says.

[Kosta Kondratenko]

I can only say that this was advised to me by Aaron Watson who...

[Judge]

I don't know who Aaron Watson is and I don't care. He's not here. You're here.

You're conducting the matter on your own behalf. What you're telling me is that you want these two people to come to court. I don't even really understand why they would have anything to say that would be relevant to the court in your hearing.

[Kosta Kondratenko]

Because they were the ones that were in the property that would prove that I lived at the property and they made stories to the officer and the officer is making stories too. I just thought I'm allowed to bring my own witnesses, that's all.

[Judge]

You are allowed to bring your own witnesses but you haven't done it. They haven't attended. No, they haven't attended because the summonses are not valid.

[Kosta Kondratenko]

But they were...

[Judge]

There's no point in arguing with me about whether or not they're valid. I'm telling you they're not. So you haven't brought them to court.

[Kosta Kondratenko]

Well, they were meant to come before the court on their own reconnaissance, my understanding is. No, they weren't.

[Judge]

You were seeking to have them brought to court under a summons.

[Kosta Kondratenko]

Mm-hm.

[Judge]

Which was not properly or validly issued.

[Kosta Kondratenko]

OK, I'm just looking...

[Judge]

So they are not required to be here today under the summons. The summons is not a valid summons.

[Kosta Kondratenko]

So I can't summon my witnesses? I would call that a miscarriage of justice.

[Judge]

Would you? Well, you've had plenty of time... Stand up when I'm speaking to you.

[Kosta Kondratenko]

Sorry.

[Judge]

You have had plenty of time to organise to get your witnesses to court if you wanted them here. I'm sympathetic to the fact that you have attempted to do that but you have not done it properly. I'm not convinced at all that those witnesses have got anything relevant to say with respect to the charge of contravening a banning notice.

[Kosta Kondratenko]

OK, so just... My understanding is the contravening banning notice which we discussed a bit before does not apply if you go back to your home. And on the body-worn camera footage, our senior sergeant, Mark Barrow, says that these people have asked you to leave.

But on the notice to leave, that's actually done two days later. I have no email correspondence from them asking me to leave any time earlier. That's why I've summoned them.

I've gone to the court. I've done everything correctly. I've had it stamped.

I'm looking at this right now. It's stamped by the court. It's saying a summons of a witness.

And my understanding is if I summon a witness and they don't come...

[Judge]

You are not listening to what I'm saying to you. Forget about the summonses that you think you issued. They are invalid.

[Kosta Kondratenko]

They are not... But they have been issued.

[Judge]

No. They're improper.

[Kosta Kondratenko]

But why would they...

[Judge]

They have no power because they were issued on their face that the witnesses were required to come and give evidence for the prosecution. It is wrong.

[Kosta Kondratenko]

I don't understand why it was accepted by the court and not told to me by the court.

[Judge]

I'm not arguing with you about any of that. It doesn't matter. The witnesses are not here.

They have not been properly summonsed to the court. You have had time. You could have sought legal advice.

You could have done this properly. You haven't. I am not adjourning this trial.

We are going to proceed with the trial right now. And I'm going to let Ms. Gorrick call her first witness or give her opening statement. And you can cross-examine the witness as you wish.

You understand what I'm doing?

[Kosta Kondratenko]

Okay. I understand.

[Judge]

Good. Jenna, have you got your letters? Yes.

[Kosta Kondratenko]

Yeah.

[Judge]

Go ahead, Ms. Gorrick.

[Prosecution]

Thank you. I have a particular remark on Exhibit 1. The Charter of the Court of Court is a breach of section 602 capital Q of the Police Powers and Responsibilities Act of 2000 contravening a police banning notice.

At approximately 2.30 p.m. on the 23rd of October of 2023, an incident occurred on the streets in Surfers Paradise. The defendant was then issued a police banning notice, banning him from the Surfers Paradise and Royal Beach safe night precinct. This banning notice was effective from the time of service, which was at 3.40 p.m., and remained until midnight on the 19th of November of 2023. The defendant was served the same day at 3.40 p.m. by Senior Constable Mark Barrow at approximately 8.24 p.m. the same day, the 23rd of October of 2023. Police were called to attend the Solak House at 76 Apple Street in Surfers Paradise as the defendant had returned to the safe night precinct, having been evicted from that particular hostel earlier that day. The defendant was within the safe night precinct.

He had been breached the banning notice and he had no lawful excuse or justification to be within the Surfers Paradise safe night precinct. If I could call my first witness, Mr. Mark Barrow. Would you all allow me to just step outside and grab him?

[Judge]

Yes, thanks. Jenna, could you go and get Mike Hodders for me, please?

[Marc Barrow]

Thank you. I solemnly affirm and declare that the evidence given by me to the court shall be the truth, the whole truth, and nothing but the truth.

[Prosecution]

Thank you. Could you please state your name, rank and station for the record?

[Marc Barrow]

Yes, Mark William Barrow, Senior Constable, Surfers Paradise Police Station.

[Prosecution]

Thank you. And could you please state for the court how you became involved in this investigation, starting with the date and time that you became involved?

[Marc Barrow]

Just dates. Dates and times are just lost on me.

[Prosecution]

If I was to say 23rd of October of 2023?

[Marc Barrow]

23rd of October of 2023, yes. I initially became involved. We were given a code 2, which is lights and sirens, to Appel Street and Surfers Paradise in relation to a disturbance occurring at that location, which we've attended at that point in time with Loco Mr Contradenko in the area.

Do you know what time that was? No, sorry. I guess it was in the morning as well.

That was approximately...

[Marc Barrow]

two... two p.m.? On the 23rd of October.

[Prosecution]

On the 23rd of October, yeah. So what happened when you attended?

[Marc Barrow]

So we've attended the address. I've taken up with the owners of the property 76, or Solak House it's called, 76 Appel Street. They've provided me with some information in relation to a trespass offence.

At that point in time Mr Contradenko was arrested for trespass by another officer. I've then gone and spoken with the owners of Solak House and obtained further information in relation to a public nuisance offence. So I've un-arrested the defendant for the trespass and I've re-arrested him for public nuisance.

[Prosecution]

Thank you. When you speak to the deceased, go to the manager's crew or who are the

managers?

[Marc Barrow]

Sandy Tulisi and Chris... I can't remember Chris's surname, but he identified himself as the manager and owner.

[Prosecution]

And did you take any steps to identify their identities?

[Marc Barrow]

They provided me with Queensland driver's licences, showing them to be who they were.

[Prosecution]

And did you take any steps to ascertain what type of building it was that you were attending?

[Marc Barrow]

They provided me with information stating that it was a holiday rental, that they had a lot of backpackers come through the business, turnover changed daily and weekly. We established the fact that it was just a holiday leasing.

[Prosecution]

And how did you establish that?

[Marc Barrow]

Just based on the information that they provided us.

[Prosecution]

Thank you. And what information did you rely on initially to put a standing notice?

[Marc Barrow]

So the information I relied upon was that a public nuisance offence had been committed. The defendant actually made admissions whilst I was talking to him, that he had yelled and screamed at Miss Tulisi and the other gentleman loud enough that people in surrounding buildings would have heard him. And when we arrived there, I spoke with people that were staying at the residence.

They said that there was a lot of yelling and screaming going on and I also observed people in the buildings surrounding the residence to be looking out the windows at what

was going on.

[Prosecution]

Thank you. And then what steps did you take with this information?

[Marc Barrow]

With that information, based on that information, like I said, I had arrested the defendant for trespass and rearrested him for public nuisance. I then asked him if he would like to go and obtain his property from Solack House, to which he's told me no, he didn't want to. He wasn't left there.

So based on that, I've then gone and collected his property with management from Solack House and brought it back down for him. At that point in time, my initial intention was to issue an infringement notice for public nuisance and the banning notice, the defendant at that point in time has yelled and screamed profanities at me whilst in the back of the police van. So I've made the decision that I couldn't leave him on the street whilst he was doing that.

So I've transported him to the Southport Watch House. At the Southport Watch House, I've attended to, on our police computer system, I've attended to acute crime occurrence. I've also put on a charge of public nuisance and printed off a bench charge sheet stating it was a public nuisance offence.

I've then gone and had a discussion with the defendant to advise him what he was being charged with. At that point in time, the defendant has apologised profusely to me for his behaviour, advised me that it's not something he normally does. I've then had a discussion with the sergeant at the Southport Watch House and decided to not proceed with the charge of public nuisance.

I've decided to issue an infringement notice for public nuisance as well as the initial police banning notice.

[Prosecution]

Thank you. If I could approach the witness room.

[Judge]

Yeah, go ahead.

[Prosecution]

Thank you. Could you confirm for the court what document I've just placed in front of you?

[Marc Barrow]

So the document is a photocopy of the initial police banning notice that was handed to the defendant.

[Prosecution]

And how was this obtained?

[Marc Barrow]

This... Sorry.

[Prosecution]

This document.

[Marc Barrow]

This document. So, like I say, it's a photocopy. We have booklets of police banning notices.

They have two parts to them. One which is given to the defendant, one which police keep themselves. So this is a photocopy of that.

This banning notice we can give for a majority of reasons within a safe night precinct. This one was given for the public nuisance offence. To get it authorised, I have to ring a sergeant from Surface Paradise Police Station, unless there's one with me on the job.

In this case, the sergeant wasn't there, so I called her on my mobile phone and gained verbal approval.

[Prosecution]

And what's the name of the sergeant you called on the phone?

[Marc Barrow]

Sergeant Kylie Crookshank.

[Prosecution]

And is that her badge number next to the words Approving Sergeant or above prior to service?

[Marc Barrow]

Yes, that's correct.

[Prosecution]

And who filled out this police banning notice?

[Marc Barrow]

That's my handwriting. I filled it out myself.

[Prosecution]

Thank you. And is that a true and correct copy of the banning notice that you filled out on that night?

[Marc Barrow]

It is, yes. Thank you.

[Prosecution]

And is that your signature under a copy of this notice was personally served?

[Marc Barrow]

That's my signature, yes.

[Prosecution]

And could you give some information to the court about the service of this notice?

[Marc Barrow]

So this notice, I have, like I said, I've decided that I'll issue an infringement notice. So I've attended the cell that Mr Kontradenko was in, I've explained the infringement notice to him, and then I have then verbally explained the police banning notice to him.

[Prosecution]

Thank you. And did you explain to him that it prohibited his attendance at the address he was arrested from?

[Marc Barrow]

Yes, I explained that to him. And there is also, on the section of the banning notice that was provided to him, there's a QR code that you can scan, which I also explained to him that he could scan that code and that'll give him the exact areas that he's not allowed to attend.

[Prosecution]

And to the best of your knowledge, sorry, did Mr Kontradenko ask you any questions as to where he could or could not go?

[Marc Barrow]

He may have asked me where he could or couldn't go, and I would have explained to him that he can't go anywhere within the Surface Paradise Safe Night Precinct, which is bordered by basically Hamilton Avenue to the south, Ocean Avenue to the north, the Narang River to the west and the beach to the east.

[Prosecution]

And the address of 76 Apple Street, you say, is within the Safe Night Precinct of Surface Paradise?

[Marc Barrow]

Correct, yes.

[Prosecution]

And how are you aware of that?

[Marc Barrow]

We have maps, which are exactly what the QR code brings up if you scan that QR code, and those maps detail the Surface Paradise Safe Night Precinct. I'm also aware of it because I've worked in Surface Paradise for approximately 10 years and have been involved in when these initial police banning notices first come in.

[Prosecution]

And when did they first come in?

[Marc Barrow]

They would have come in about four or five years ago.

[Prosecution]

So you've issued...

[Marc Barrow]

I've issued many police banning notices.

[Prosecution]

Thank you. Did you obtain a residential address of the defendant when he was being processed?

[Marc Barrow]

The defendant wouldn't provide his residential address. He was attempting to tell me that his residential address was 76 Apple Street, which it wasn't. He would not give me another residential address, so I've just placed it on his last residential address.

[Prosecution]

And why?

[Marc Barrow]

Which was a Kangaroo Point address.

[Prosecution]

And why would you not believe that the 76 Apple address was his home address?

[Marc Barrow]

Because the management had told me that he was not welcome there and it's just a holiday leasing.

[Prosecution]

And as a police officer, is that information that you would rely upon for an eviction? Yes. Would you normally do any extra enquiries into evicting someone from a property?

[Marc Barrow]

We would attempt to find out what sort of residential... what sort of leasing it is, which, like I say, if it's a holiday leasing, that's a QCAT matter, it's not a police matter. Thank you.

[Prosecution]

So you were satisfied that that was not Mr Kontradenko's residential address? Correct, yes. Thank you.

And could you please take us through what happened for the rest of the evening?

[Marc Barrow]

So we went about our normal duties after we'd left the watch house, after I'd served the police banning notice on Mr Kontradenko. Approximately two hours, so approximately

1,900 hours, we received a phone call from 70... Sorry, we received a radio communication from our police communications stating that the gentleman was back, or there was a gentleman back at Solack House that had been removed from there earlier in the day.

So we attended the address again. I had a reasonable knowledge of who it may have been based on what was told from police communications. So we arrived at the address.

I think it was roughly 19, 30 hours, 7, 30 hours, and I've located Mr Kontradenko sitting in a common room at the address on his computer drinking a coffee.

[Prosecution]

Thank you. If I was to suggest it was later in the evening, could that also be correct?

[Marc Barrow]

Yeah, 20, 30, 20, 100 hours. I just... Sorry, I didn't...

[Prosecution]

Did you read your statement prior to coming into court today?

[Marc Barrow]

No, sorry, I didn't.

[Prosecution]

And once you arrived at Solack House, what steps did you take in your investigation?

[Marc Barrow]

I observed Mr Kontradenko as I stated, sitting at my table drinking a coffee on his computer. I knew that I had earlier issued him with an initial police banning notice. I knew that Solack House was within the Surface Paradise Safe night precinct.

I also knew that prior to leaving earlier in the day, the management at Solack House had advised me that the defendant wasn't welcome back at that address. However, I wasn't going to charge him with trespassing as well as contravention of the police banning notice, so I've just run with the charge or the charge for contravening the police banning notice.

[Prosecution]

Thank you. You say you removed his property earlier on in the day.

[Marc Barrow]

Yes.

[Prosecution]

Did you remove everything that you believed to be his from the little bed? Yes.

[Marc Barrow]

The managers attended with me. They showed me which was his bed, which were his drawers at the location and pointed out everything that he'd owned. Thank you.

[Prosecution]

And when was this property returned to Mr Kontradenko?

[Marc Barrow]

This property was returned once I'd issued him with his infringement notice and police banning notice at the Southcourt Watch House. And he was released? He was released from the Southcourt Watch House, which would have been approximately 1545.

[Prosecution]

Thank you. And once you determined that he was at the house and that he shouldn't have been, what steps did you take to prove the charge before the court?

[Marc Barrow]

So we've made sure that the defendant packed up his computer, emptied his coffee cup, and then we've walked him outside. At that point, I've asked him some questions in relation to being back there after having been told that he couldn't be. He hasn't really responded to that, so I've issued him with a notice to appear in the Southport Magistrates Court in relation to contravention of our police banning notice.

[Prosecution]

Did he then leave the Safe Night precinct?

[Marc Barrow]

Yes.

[Prosecution]

And how are you aware of that?

[Marc Barrow]

We had the camera office once I'd issued the notice to appear, I'd advised the camera office that he'd been issued that notice to appear and he was going to be there immediately, and the camera office had followed that service. Thank you.

[Judge]

Thank you, no further questions. Alright, Mr Condratenko?

[Prosecution]

Oh sorry, I beg your pardon, I seek to tender a copy of the police banning notice.

[Judge]

The copy of the police banning notice will be admitted and marked to Exhibit 2.

[Kosta Kondratenko]

Thank you, I apologise.

[Judge]

That's alright.

[Kosta Kondratenko]

I apologise about my time, Your Honour.

[Judge]

Mr Condratenko, this is your opportunity to ask some questions of Officer Barrow in cross-examination. Go ahead, thanks.

[Kosta Kondratenko]

Before I start, Your Honour, there were some allegations made about a separate charge, it was a public nuisance charge. This is separate to the contrary banning notice, and since there's no evidence of any of this, I imagine there's no statements from people in the balconies.

[Judge]

Any public nuisance offence is not before the court, neither is any trespass offence.

[Kosta Kondratenko]

Exactly, so I just ask for it not to be stricken from the record.

[Judge]

It's not going to be stricken from the record, but it's not relevant to the matters before the court.

[Kosta Kondratenko]

It's not relevant to matter relevant to the matter before the It's not relevant to the matter before the It's not relevant to the matter before the So you have to ask the officer if you showed him any paperwork before you can ask him about whether or not he was interested in the paperwork. Let's just talk about the questions. You made a comment that this is a short-term state, and I said I've got a bond lodge with the RTA.

[Judge]

Hang on, you're not giving the officer a chance to answer. You've got to ask questions. You can't just make lengthy statements.

Try and keep your questions short so the witness understands what you're asking him. Otherwise he can't just make comments.

[Kosta Kondratenko]

Do you recall me making a comment that I have a bond lodge with the RTA and there's a dispute in place with the mediators in QCAT?

[Marc Barrow]

I recall something along those lines, yes. Do you recall saying I don't care? I don't recall saying I don't care.

However, that's not what I was there for.

[Kosta Kondratenko]

Well, you said this is a short-term accommodation and you have to leave. Correct. Now, the owners told you a different story and you used your authority as a Queensland police officer.

[Judge]

Hang on, questions. Okay.

[Kosta Kondratenko]

Now, the owners told you a story about the accommodation and things of that nature. Is that correct?

[Marc Barrow]

The owners gave me their version of the verities.

[Kosta Kondratenko]

So, you used your authority as a Queensland police member to have me leave the evicted and breached the residential tenancy act. Is that correct?

[Marc Barrow]

No, that's not correct. I had nothing to do with that. I issued you an infringement notice for public nuisance as well as a police banning notice.

[Kosta Kondratenko]

Mark Barrow, we're not talking about the public nuisance here. I'd like you to stick to the offence in question.

[Judge]

You need to ask sensible questions of the witness. You asked him if he used his authority to evict you and he says no, he issued you with an infringement notice for public nuisance and a banning notice.

[Kosta Kondratenko]

It doesn't matter.

[Judge]

That's the answer. Focus on what you're focusing on. Just leave me to ignore what doesn't matter.

[Kosta Kondratenko]

In regards to the contravene banning notice charge, can you stick to this charge exclusively if you want to ask questions? Now, when you came to, you remember me telling you I have a bond lodge with the RTA that's on the body one bridge, yes?

[Judge]

witness said he did have some recollection of that.

[Kosta Kondratenko]

Okay. Now, the owner told you a different story, okay, about what the property was and you used your authority as a Queensland police member to breach the residential tenancy act.

[Judge]

He's already answered that as well. You don't just get to repeat your question until you get the answer you want. The witness has already answered that question.

You don't get to ask it again.

[Kosta Kondratenko]

I don't recall the answer. What was the answer? Yes.

[Judge]

He said that was not his purpose. He issued you an infringement notice regarding a public nuisance and a banning notice. We've been there.

Ask questions.

[Kosta Kondratenko]

I would like to stick to the charging question. I wish you would. Can we please only speak about the contravene banning notice?

[Judge]

Questions.

[Kosta Kondratenko]

Is there any truth that you have a relationship with these people, the management, and you've done this to get rid of me?

[Judge]

You need to break that down. You can put to the officer these particular propositions but they have to be single questions. You can't join multiple things together.

[Kosta Kondratenko]

Do you have a relationship with these people?

[Marc Barrow]

No, I've never met those people before in my life.

[Kosta Kondratenko]

You said they gave you a story. Did you get a statement from them?

[Marc Barrow]

That wasn't the question.

[Kosta Kondratenko]

Did you get a statement from them?

[Marc Barrow]

No, I did not.

[Kosta Kondratenko]

I'm asking the question. I'm asking the question. I'm asking the question.

[Judge]

I'm asking the I'm asking the question. I'm asking the I'm asking the question. I'm asking the I'm asking the question.

[Kosta Kondratenko]

I'm asking the question. question. I'm asking the question.

[Judge]

asking the question. I'm asking the question. I'm asking the I'm asking the question.

I'm asking the question.

[Kosta Kondratenko]

I'm asking the question.

[Judge]

I'm asking the question.

[Kosta Kondratenko]

I'm asking the question.

[Judge]

I'm asking the question. I'm asking the question.

[Kosta Kondratenko]

I'm asking the question.

[Judge]

I'm asking the question. I'm asking the question. I'm asking the question.

[Marc Barrow]

I'm asking the I'm asking the question. I'm asking the question. I'm asking the I'm asking the question.

I'm asking the question. I'm asking the take steps in relation to trespass, once we've given them fair warning to leave the premises. But under the Residential Tenancies Act, I can't, the victim has such, but my belief is that he's not classed as being under the Residential Tenancies Act because it's a holiday meeting.

[Judge]

What you were doing, just clarify this for me if you could.

[Marc Barrow]

Yes.

[Judge]

What you've given in your evidence is that as far as you're concerned, you were managing a situation under the powers that you have under the Police Powers and Responsibilities Act. You were not, in your view, acting under any other authority.

[Marc Barrow]

No, I went there under the guy, well, utilising the Police Powers and Responsibilities Act because the defendant was contravening a police banning notice, had nothing to do with- May I ask, may I ask?

[Kosta Kondratenko]

You've just been a bully, is that right?

[Judge]

In what respect?

[Kosta Kondratenko]

Well, as you said, you feel because you wear a sidearm and a badge, you think that you can bully people, when you like.

[Judge]

Hold. Do you think that, Senior Constable?

[Kosta Kondratenko]

No.

[Judge]

Okay, move on, thanks.

[Kosta Kondratenko]

Do you think you can mislead the court and tell the court what they want to hear and think that because you're a police officer, they're gonna believe you over somebody else?

[Marc Barrow]

I fail to understand what this has to do with contravening a police banning notice.

[Kosta Kondratenko]

The truth is you just misled the court, it isn't such a- Just hold on a minute.

[Judge]

Just answer the question. Do you think that you've got an ability to just come here and say anything you like and mislead the court?

[Kosta Kondratenko]

Yes or no? No, no.

[Judge]

Okay, go ahead, Mr. Constable.

[Kosta Kondratenko]

Thank you so much.

[Judge]

Is that all you've got?

[Kosta Kondratenko]

Yes, that's my question.

[Judge]

All right, anything in re-examination? No, Your Honour. All right.

Senior Constable, that's the end of your evidence today. Thank you, Your Honour. That can stay there.

Thank you. Ms. Gorrick.

[Prosecution]

Thank you, Your Honour. Your Honour, I have heard from the prosecution witnesses today and I would seek that Your Honour find the defendant guilty of the charge of contravening a police banning notice.

[Judge]

Hold on, hold on. We're not going into closings yet. Oh, I beg your pardon.

You're closing your case.

[Prosecution]

Oh, I beg your pardon.

[Judge]

All right.

[Prosecution]

I'm sorry.

[Judge]

That's the close- That's the prosecution case. Okay, good. I apologize.

Mr. Kondratenko, this is now your opportunity to offer any evidence in your own defense. It's a matter for you whether or not you choose to give evidence in your own defense or not. What do you want to do?

[Kosta Kondratenko]

Your Honour, I think I've stated everything I feel- That's not evidence. Okay.

[Judge]

If you want to put evidence before the court, you've got to do it in the witness box. Oh. It's up to you, though.

You don't have to.

[Kosta Kondratenko]

No, I feel- No, thank you so much for the opportunity, Your Honour. I feel like there's nothing else for me to say.

[Judge]

Well, there is something else for you to say, but, Mr. Kondratenko, it seems to me, from everything that you've said from the bar table, which is not evidence, that you're asserting that the address was your residence.

[Kosta Kondratenko]

Yes, that's right.

[Judge]

There is no evidence currently before the court that it was your residence. What about the notice- That is not, that hasn't been tendered into evidence.

[Kosta Kondratenko]

It has been tendered into evidence.

[Judge]

No, it hasn't.

[Kosta Kondratenko]

I emailed the court about this.

[Judge]

That's not evidence. That's not how it works. I told you at the start that evidence was evidence that was marked, admitted and marked as evidence in the trial.

You haven't done that. I'm going to give you one more opportunity to decide whether you want to go into evidence or not by getting into the witness box and making a statement, perhaps also tendering a document.

[Kosta Kondratenko]

I'm happy to get into the witness box.

[Judge]

Not happy to, it's your choice. Do you want to?

[Kosta Kondratenko]

Would the prosecution be cross-examining?

[Judge]

Yes.

[Kosta Kondratenko]

I'm happy to do that.

[Judge]

Okay, good. Hop over into the witness box, then.

[Kosta Kondratenko]

Just sit with me, please. Yeah. Do you want me to take a copy of the Bible or an affirmation?

I'd like an affirmation.

[Kosta Kondratenko]

Can I just look at this paragraph, please? Thank you.

[Kosta Kondratenko]

I solemnly affirm and declare the evidence given by me to the court shall be the truth, the whole truth, and nothing but the truth.

[Judge]

All right. So, Mr. Kontratenko, this is your opportunity to tell me what your situation is with respect to the charge and why you say you didn't breach the banning notice. When you've done that, you can refer to any documents you want.

You can seek to have them tendered. Once you're finished doing that, Ms. Gorek can cross-examine you. All right?

Go ahead.

[Kosta Kondratenko]

So, I moved into Appel Street at about two months and 10 days I have before this whole situation unfolded. After I moved in, I noticed some very strange occurrences in the

property. There were evictions that were being made with one- or two-day or three-day notices.

The entire place was, it was a shared accommodation. There were pods in there, and people were stopped from accessing their pods if they were late with rent. I started doing research and started to find out that the property that was operating was not compliant with a lot of regulations, and so I raised this issue with the owner after a person there, a lady there, was evicted for a three-day notice for- Objection, Your Honor.

[Prosecution]

This has no relevance to the charge of contributing to a police banning notice.

[Kosta Kondratenko]

Well, it is if I am, if it is my home- It's also here saying that a lady was evicted from there.

[Judge]

Anyway, it doesn't matter what happened to other people. Just focus on yourself. Okay.

[Kosta Kondratenko]

So, basically, this landlord, I raised some of these issues, and they began emailing me fines, such as a fine for washing a cup and not putting it away, and sending me photos about that. I understood they were dodgy. They were constantly threatening to call the police, and one day I said, okay, let's call the police and bring them in here.

I said, let's call the police, and this went on for about an hour and a half, and nobody called the police because they knew what was going on. After that, Mark Barrow arrived on the scene. I told him to go into the property.

He refused. This is on camera. He said, I said, do you realize there's people there that are not taking bonds?

He said, no, it's a proper place. And then he, again, the events of the public nuisance charge, they put handcuffs on me. I was not in any way aggressive.

I was not in any way violent. They put me in the paddy wagon. Somebody told Mark Barrow and said, please un-arrest him.

He got that message. That will be on the footage as well. He then said, you're un-arrested.

A person from that property then came and asked me if a laptop was mine. I said, yeah, yeah, I don't wanna answer that. They then proceeded to take all my things and give

them to Mark Barrow and move them to the police station.

Now, I came back. The lady in question, whom I had subpoenaed to appear at court, who chose not to appear, along with her husband, stated that I had to leave. Now, they showed Mark Barrow this document.

Well, how else would he have known that I have to leave? It would be on the notice to leave.

[Prosecution]

This wasn't put to Mark Barrow in cross-examination.

[Kosta Kondratenko]

Well, whether it was, the fact is, how else would he know that I had to leave? What was the reason? And why was there no statement taken from Sandy?

[Judge]

It doesn't matter.

[Kosta Kondratenko]

Why is Sandy and Chris not here?

[Judge]

So anyway, Mr. Kontratenko, you need to just stick to the facts. Don't ask questions.

[Kosta Kondratenko]

I got the contravene banning notice and I understood that this was still my home. I didn't do anything wrong. There was no behavioral issues.

There was no wound. There was nothing on the emails. What the landlords had done was make a story.

We know it's not true. Ask for this document because the date that I was charged with the contravene banning notice was one day or one or two days before I was set to leave. Now, Mark Barrow has stated that he doesn't believe that he can use his gun in a badge to do whatever he wants.

But if that's the case, why does he feel that it's okay to evict me from my property early? I don't understand. So the owner, who I believe has a relationship with the senior sergeant, decided not to show up today.

They were served with a summons to produce. This is on the video. This was tendered to

the court, as is the summons.

[Judge]

No, no. There was no video tendered to the court.

[Kosta Kondratenko]

The video was emailed to the court.

[Judge]

I've told you this already. That is not tendered to the court.

[Kosta Kondratenko]

Okay.

[Judge]

There are summonses on the file and we've been through that already. Not going back to them.

[Kosta Kondratenko]

Sandy and Chris have told Mark Barrow's story. And what I don't understand is either Mark Barrow knew what he was doing he couldn't do and didn't have the jurisdiction. Yeah.

[Judge]

I'm just gonna let him go. Ms. Corrick, go ahead, thanks.

[Kosta Kondratenko]

Either he knew, based on this document, that he wasn't allowed to ask me to leave and decided to go ahead anyway and use his jurisdiction. Or him and the property owner have a relationship. Now, I don't know if they do.

But the fact is, but what I do know is that the police can't just come in there with guns into a place that I live at and ask me to leave. And when I tell them I have a bond lodge, say, I don't care, which is on the body-worn camera footage, which the police, which the prosecution doesn't want to play in this courtroom. They didn't play that footage.

There's a reason why. And I say there's also a reason why Chris and Sandy didn't show up. And it's not because I didn't write someone who was- That is speculative.

[Judge]

Don't go there. I've already told you, you don't know why they're not here. And I've already told you that the summonses are not properly issued.

[Kosta Kondratenko]

Okay, well, I know that they chose not to come. Fine. They, you know, we can, I'll move past that.

But, I mean, what gives senior sergeant- So I don't believe I did anything wrong by going back to my home.

[Judge]

That's all I'm saying. All right. Is there anything else you wanted to say?

No, that's it. No? You want to tender that document?

Yes, I'll do that. All right, I'll take that document. That'll be admitted and marked to Exhibit 3.

Sit down.

[Kosta Kondratenko]

Oh, I'm sorry. That's all right, that's all right. Sorry.

[Kosta Kondratenko]

Sorry about that. That's okay. It's my first time in court, so.

[Judge]

That's all right. Yeah, thank you. All right.

Ms. Gorrick.

[Prosecution]

Thank you. Mr. Contredanco, you agree that on the 23rd of October, 2023, you were spoken to by the police around 2.30pm. Which charge are you referring to?

[Judge]

Doesn't matter. It's a straightforward question. Were you spoken to by police at around about 2.30 on that day?

[Kosta Kondratenko]

Yes, I was.

[Prosecution]

Out the front of 76 Apple Street, Service Paradise?

[Kosta Kondratenko]

Yes.

[Prosecution]

Thank you. And do you agree that you were told by police that you were detained for trespass?

[Kosta Kondratenko]

No, that's not true. And the body-worn camera footage will show that. So whoever has told you that, that has lied.

And that will show in the public nuisance charge, which I believe- That's fine.

[Judge]

You don't need to do that. You're disagreeing with that. Okay.

[Prosecution]

Do you agree that you were taken to the watch house by a police officer? The Southport Watch House by a police officer.

[Kosta Kondratenko]

Yes, I was taken to the Southport Watch House after I was arrested and unarrested and given an infringement notice, but it was lodged- Just a yes or no is fine.

[Prosecution]

You were taken to the watch house. You agree. And at the watch house, you were given an infringement notice for a public nuisance, were you not?

Yes. And you were apologised to the police officers for your earlier behaviour, did you not? No.

Yes, so you've apologised. And at the watch house in Southport, you're also given an initial police banning notice. What's the relevance of this?

[Judge]

Don't ask questions. You're here to answer them now.

[Prosecution]

Thank you. If I could show the witness exhibit two, the copy of the police banning notice, please. Have you seen that document before?

[Kosta Kondratenko]

Yes, I have. And I'm looking at it now. It says, I'm not allowed to enter or remain in any public places in the Safe Night precinct.

[Prosecution]

That's correct. But that is the copy of the initial police banning notice that was served on you at 3.40pm?

[Kosta Kondratenko]

I imagine so, yes.

[Prosecution]

Thank you. And you were served by Senior Constable Barrett?

[Kosta Kondratenko]

Yes, that's correct.

[Prosecution]

Thank you. And you were made aware that you weren't, as you just said, to go to any relevant public places, including the Surface Paradise and Broad Beach Safe Night precinct?

[Kosta Kondratenko]

What I see here is it says it has a cross next to relevant public place. Now, you've just stated Surface Paradise in general. Are you implying that I can't go anywhere in Surface Paradise?

[Prosecution]

I'm not implying anything. I'm asking a question. It says here next to relevant public place, Surface Paradise and Broad Beach SMP Safe Night precinct.

Will you explain that?

[Kosta Kondratenko]

What I see here is it says, I'm not to attempt to enter or remain in a public place in a Safe Night precinct, including licensed premises. Is that correct? Is that what it says?

[Judge]

I'm just reading what it says. Do you believe it's possible to be a public place? No, that's...

[Kosta Kondratenko]

I don't believe it.

[Judge]

Call us for a conclusion of law.

[Prosecution]

Sorry, thank you.

[Judge]

He's not qualified to answer that question.

[Prosecution]

Thank you, no problem. I respect that question. But you agree you were served with this document by the police officer at the watch house?

[Kosta Kondratenko]

Yes, I'm looking at the document now, which prevents me from going to licensed premises.

[Prosecution]

Just yes on those five. And then you were made aware of a QR code, which can tell you about where the Safe Night precinct is in both Surfers and Broad Beach, correct?

[Kosta Kondratenko]

Well, I don't need a QR code to know that I'm not able to enter a public place.

[Prosecution]

Were you told about a QR code, yes or no?

[Kosta Kondratenko]

I don't remember being told about a QR code.

[Prosecution]

Okay, thank you. And then you left the Southport watch house with your police banner notice? That's correct.

And your property from 76 Applestrom?

[Kosta Kondratenko]

With the illegal eviction, yes.

[Prosecution]

Yes, but you had your property with you?

[Kosta Kondratenko]

Yes, that was taken unlawfully from the place that I live by Mark Barry.

[Prosecution]

And you were told by the officers not to return to 76 Applestreet under any circumstances, were you not?

[Kosta Kondratenko]

I don't understand what jurisdiction the officers have.

[Prosecution]

I'm asking you a yes or no question. It doesn't matter about the jurisdiction. Were you told not to go back to 76 Applestreet?

[Kosta Kondratenko]

Was I told not to go back to 76? I was told that I can't go back to Surfers Paradise with this banner. I was never told not to go back to 76 Applestreet.

So that's not true.

[Prosecution]

I put it to you that the officer did say do not return to that hostel at Solic House, which is located at 76 Applestreet, the Surfers Paradise quite a few times.

[Kosta Kondratenko]

Really? Okay, well, that's his statement. And we'll look at the footage on the public nuisance charge.

But again, these are all allegations that there are no statements. Okay, he's saying he said that, I'm saying he didn't.

[Prosecution]

Okay, I put it to you, you were told multiple times you were evicted from that address by both the property, sorry, were you told by the property manager you were evicted from that address?

[Kosta Kondratenko]

No, I wasn't. And the senior sergeant, Mark Barrow, doesn't get to decide who's evicted and who's not.

[Prosecution]

So yes or no would be absolutely perfect. Were you told by the police officer that you were evicted from 76 Applestreet of Surfers Paradise?

[Kosta Kondratenko]

So if we're talking about the contraband ban notice.

[Judge]

No, just answer the question. Did the police officer tell you that you were evicted or not?

[Kosta Kondratenko]

I don't recall him saying that you've been evicted. I know in the 41 camera footage which I reviewed for this case, because this was a long time ago.

[Judge]

Just hold on, hold on. That's enough. Go ahead, Ms. Garver.

[Prosecution]

Thank you. Do you accept that at around 8.24 p.m. on the 23rd of October of 23, you returned to 76 Applestreet?

[Kosta Kondratenko]

Yes, I returned to my home, yes.

[Prosecution]

Thank you, and do you accept that that address is within the Surfers Paradise Safe Night Precinct as outlined?

[Kosta Kondratenko]

Well, it's in Surfers Paradise. It's not a public place, and it's not a licensed premise.

[Prosecution]

But you accept it's within the Safe Night Precinct?

[Kosta Kondratenko]

Okay, sure.

[Prosecution]

And you were sat working on a laptop when the police came, having your coffee? That's correct. You weren't collecting any of your property, were you?

[Kosta Kondratenko]

Collecting any of my property?

[Prosecution]

Yes, you already had all your property with you. No, I was in my home. You were in your home?

[Kosta Kondratenko]

Yeah, as per the bond that was lodged.

[Prosecution]

Where's your usual home?

[Kosta Kondratenko]

I'm sorry, I'm not sure. You're on holiday? Well, at the moment, I've been made homeless by you guys, by the police.

So I don't actually have a home right now. I live in a tent. After Mark Barrow decided to use his gun and a badge to evict me and think that he has those jurisdiction powers.

Now, it's quite clear before, he said that he doesn't feel that he has that.

[Prosecution]

You didn't just answer the question at hand.

[Kosta Kondratenko]

What's the question? What's the question?

[Prosecution]

You found the evidence and changed. You were evicted from the hostel, were you not?

[Kosta Kondratenko]

Evicted.

[Prosecution]

You were asked to leave the hostel?

[Kosta Kondratenko]

Yes, and I've tended the notice to leave to the judge. Did you look at the date of that?

[Prosecution]

Was it issued on the 22nd of October of 2023?

[Kosta Kondratenko]

Did you guys read the emails I sent to you?

[Prosecution]

Please answer the question. Did that notice get issued on the 22nd of October of 2023?

[Kosta Kondratenko]

That notice to leave was for after Mark Barrow decided to take the law into his own hands.

[Prosecution]

Was it issued on the 22nd of October of 2023?

[Kosta Kondratenko]

Was it issued? Look at the date. Why don't you read your email?

[Judge]

Kondratenko, there's no need to argue with the prosecutor. She's just doing her job. She's asking very simple questions.

They don't need lengthy, argumentative or combative responses. She's asking you simply if you were given notice to leave on the 22nd of October, 2023.

[Kosta Kondratenko]

I don't recall the exact date.

[Judge]

Do you want to see the document? I'm going to return Exhibit 3 to the witness.

[Kosta Kondratenko]

The notice to leave. So you're asking me when I received this? When it was issued.

When it was issued. I'd have to check my email. I can only look...

Oh, no, it says here, Sunday, the 22nd of October.

[Judge]

But it's signed on the 23rd.

[Prosecution]

Signed on the 23rd. Thank you. OK, so before the events that involved the police, you were aware that the hospital didn't want you there, were you not?

[Kosta Kondratenko]

Jenny, could you attend to that for me? I'm sorry about my phone. I just thought, can you turn it off?

It's got no lock on it. Just lock that.

[Judge]

If it's got a silent on it, just make it silent.

[Kosta Kondratenko]

Yeah, I don't know why I turned... I'm sorry. I'm sorry.

Go on.

[Prosecution]

You were made aware that the hospital wanted you to leave before the police became involved in this matter?

[Kosta Kondratenko]

Yeah, they asked me to leave on the 20... As it says on the document here, resident must vacate this property by 5pm on the 24th of October.

[Prosecution]

Yes, yes, but on the 23rd of October, you behaved in a way that then made the hostel want you removed even quicker, did you not?

[Kosta Kondratenko]

These are all... I don't know what you're talking... These are all allegations.

[Prosecution]

That's exactly what I have to put to you, is allegations, unfortunately. So on the 23rd of October of 23, in the afternoon, around 2.30pm, you behaved in a way that the hostel no longer wanted you there that day.

[Kosta Kondratenko]

I'm a little confused because I remember before it was stated that I was on trespassing charges, so which one is it? I'm not here to answer questions. Well, OK, I'm just trying to understand what you and the police are trying to imply.

[Prosecution]

That's quite clear. You were issued a police banning notice, were you not, and served at 3.40pm on the 24th of October.

[Kosta Kondratenko]

Well, you tried to get me on the trespass charges, which you couldn't.

[Judge]

No, no, Mr... Mr Kondratenko, just answer the question. You've already answered the question before anyway, but you accept that you were issued with a banning notice.

[Kosta Kondratenko]

I accept that I...

[Judge]

In the afternoon, around 3.20pm, and you went back to the address at about 8.25pm. Thank you.

[Prosecution]

That's all I'm trying to establish here, Mr Kondratenko. So while you...

[Kosta Kondratenko]

Sorry.

[Judge]

Don't... Don't say anything to the prosecutor other than in response to questions.

[Marc Barrow]

Sorry, sorry.

[Judge]

Just take a breath. I know it's difficult and I know this is not your usual place, but just try to just relax a little bit and just answer the questions. Go ahead, Ms Kaur.

[Prosecution]

Thank you. Where did you live prior to attending the hostel?

[Kosta Kondratenko]

Before I moved in there, I was living at Moolamba. Moolamba.

[Prosecution]

And where's your normal place of residence? Where did you...

[Judge]

I'm not going to let you ask that question. You're going to have to put that a wee bit better. You're going to have to put it with some particularity about when you're talking about.

He's already told you he's homeless.

[Prosecution]

Sorry, prior?

[Judge]

Now.

[Prosecution]

Yes.

[Judge]

And you've asked him where he was living before he went into the hostel and he says Moolamba. Sorry. So what are you asking him?

[Prosecution]

Thank you. How long were you at this property in Moolamba About a year and a half, two years. Thank you.

And what brought you to the Gold Coast?

[Kosta Kondratenko]

Just decided to come because I'm a free citizen. I can go where I want.

[Prosecution]

For a holiday?

[Kosta Kondratenko]

I like the beach. I can go where I want. The police...

[Prosecution]

Of course you can. You came for a short-term let though, didn't you? For a short-term holiday let.

[Kosta Kondratenko]

Well, Sandy's minimum stay is two months.

[Prosecution]

Yes. So you went for... How long did you sign up for?

[Kosta Kondratenko]

Well, you can stay there for as long as you want.

[Prosecution]

As under the... Just asking how long you had signed up to stay there for.

[Kosta Kondratenko]

For as long as I want. That's on the agreement.

[Prosecution]

So there's no end of this lease?

[Kosta Kondratenko]

No, there's no end to the lease.

[Prosecution]

Then how could you in any way be on the lease agreement if there's no periodical end?

[Kosta Kondratenko]

I can show you the documents if you like.

[Prosecution]

Thank you. So you confirm that you're staying at a hostel. I'm staying at Gold Coast.

[Judge]

Hold on. Don't argue. Just listen to the question.

[Prosecution]

Thank you. You're staying at a hostel. You've given them bond money and it has no end to when you have to leave that hostel.

[Kosta Kondratenko]

I'm staying in an accommodation, in a rooming accommodation, not a hostel. Do you see the word hostel?

[Prosecution]

Please answer yes or no. You can say no and then I can rephrase the question if you prefer. Thank you.

You're staying at a short-term holiday let for an unknown period that has no end date.

[Kosta Kondratenko]

Why do you say short-term? Why do you keep saying short-term? Okay, this is...

[Judge]

He obviously doesn't... Mr. Kontotenko, just say you don't accept short-term. Just say no.

[Kosta Kondratenko]

I don't accept the word short-term as per this document.

[Prosecution]

Thank you. You accept there's no end date to the document. There's no end date to the lease.

[Kosta Kondratenko]

The lease that I was under did not have a date when I had to leave. It was a periodic lease. You could just stay on for as long as you like.

That's my understanding. Thank you. It was not a hostel as has been claimed by you and Mark Barrow.

As much as you guys would like to keep saying that word, to make it seem like you guys can evict people whenever you like, it's a hostel. Unfortunately, the law does not agree with you and you don't have the jurisdiction.

[Judge]

Mr. Kontotenko, you don't get to go into sweeping statements about what you think the law is. Ms. Gork.

[Prosecution]

Thank you. I'll put it to you, Mr. Kontotenko, that that was not your residence. That was not your home.

[Judge]

Was it your home or not?

[Prosecution]

It was my home.

[Judge]

Right. Go on, Ms. Gork.

[Prosecution]

I have a contract.

[Judge]

Mr. Kontotenko, that's enough.

[Prosecution]

All right. Thank you. I put it to you that you were on holiday and that that was a short-term holiday let and not your residence.

[Kosta Kondratenko]

Do you agree or disagree? No, I disagree completely as per the documentation and the evidence. And you're making assumptions about why I evicted you.

[Judge]

Don't keep going. Just answer the question.

[Kosta Kondratenko]

Thank you. I put it to you that you were evicted from the hostel. I don't say, I say it's not a hostel.

And the documentation, again, the story that you're saying is not true. Based on the documentation that I have. And you can laugh, but I don't think it's funny.

To be homeless.

[Judge]

No, she's not laughing. Don't make, don't, stop it. Ms. Gork.

[Prosecution]

Thank you. I have looked into the legality of the Residential Tenancies Act, but there's no need to go.

[Kosta Kondratenko]

Well, do you guys...

[Judge]

It's up to you what you want to put to the witness, Ms. Gork.

[Kosta Kondratenko]

You want to talk about it, so let's talk about it.

[Judge]

No, Mr. Kontotenko. Ms. Gork is in charge of running her case in the same way that you are in charge of running your case. She will keep asking you questions until she is finished.

[Prosecution]

Thank you. You appear to have looked into the RTA and the legislation surrounding it. Were you aware that holidaymakers or travellers, including accommodation provided by backpackers' hostels, is not covered by the Act and the rules within the Act?

[Marc Barrow]

So, I... Which Act?

[Prosecution]

Oh, I beg your pardon. The... Tenancies and Rooming Accommodation Act of 2008.

Sorry, I should have...

[Judge]

So, what do you mean? I don't understand the question, so I don't see how the witness can understand the question.

[Prosecution]

I apologise. He's stating he's covered by the Tenancy Act.

[Judge]

He's saying he had an agreement to be there. Yes. And it was a rooming accommodation.

For which he had paid a bond. And for which there was no end date. Yes.

Other than the notice that he was given. The notice to leave. Was the end.

[Prosecution]

Yes.

[Judge]

So, what's the question?

[Prosecution]

That doesn't matter. Do you accept that it was your behaviour outside of the accommodation that was the reason for the issuing of the police family notice?

[Kosta Kondratenko]

No, because these are allegations that you're making and I have no email from the landlord on any of these allegations that you're making. I would imagine if a landlord wanted me to be evicted, he wouldn't mind.

[Prosecution]

How did you get to 76 Appleton Street the evening at 8.40pm? From leaving your watch house in Southport? How did you get back to the hostel?

You took a tram? Where did you get on the tram?

[Kosta Kondratenko]

At Southport.

[Kosta Kondratenko]

And where did you get off the tram? Near a hostel, I think it's at Cavill Avenue or the one after that is the tram stop. And at what time did you get on the tram?

I don't remember these exact numbers but I imagine it would be 15-20 minutes before I had got this contraband notice.

[Prosecution]

So what did you do when you left for Southport Watch House?

[Kosta Kondratenko]

I got on the tram.

[Prosecution]

So you were served at 3.40pm on the 23rd of October and then you say you got on the tram straight away pretty much?

[Kosta Kondratenko]

Oh, okay, so you're saying because I got served at 3.40pm and then it was my time

when I got back. Okay, yeah. I can't comment on why it was a while ago but maybe I sat around.

Whatever I did, I just know that the contraband notice charge is when I came back there.

[Prosecution]

Are you aware that Cavill Avenue, where you got off the tram forms part of the Safe Night precinct of the Service Paradise?

[Kosta Kondratenko]

Yes, I am aware of that.

[Prosecution]

Were you aware that you would be in breach by getting off the tram at Cavill Avenue in the Service Safe Night precinct?

[Kosta Kondratenko]

No, I disagree with that statement because I reviewed the banning notice and it stated that you were allowed to go back to your home and I believe that Mark Barrow acted improperly and that he did not have the right to evict you. I believe that was an illegal eviction.

[Prosecution]

Mark Barrow did not evict you, I put that to you.

[Kosta Kondratenko]

Well, I just remember you stating that you were evicted.

[Prosecution]

Sandy and Chris of 76 Afton Street evicted you, did they not?

[Kosta Kondratenko]

But the notice to leave states that this was one or two days after this happened, so...

[Prosecution]

But then on the 23rd of October of 2023 did they not tell you to leave? That you could not live there anymore because of your conduct?

[Kosta Kondratenko]

I'm not sure, are you talking to the notice to leave or are you saying they gave a verbal statement or an allegation by Mark Barrow?

[Prosecution]

I'm not talking about Mark Barrow, just Sandy and Chris.

[Kosta Kondratenko]

So Sandy and Chris...

[Prosecution]

On the 23rd of October did they ask you to leave?

[Kosta Kondratenko]

I don't understand. They gave me a notice to leave, they never asked me to leave after that. They never said you have to leave.

They never sent me any other documentation.

[Prosecution]

So on the 23rd of October you weren't told to leave?

[Kosta Kondratenko]

That was a public nuisance charge, that was a separate charge. These are two separate charges. And you should...

And they should be completely stricken from the record...

[Judge]

Mr Konchatenko, just answer the question. You've said they didn't ask you to leave after they gave you the notice. Is that right?

[Kosta Kondratenko]

They gave me this...

[Judge]

Yes, after they gave you that, did they ask you to leave or not?

[Prosecution]

No.

[Judge]

No. Okay, good. Ms Gorick.

[Prosecution]

I put it to you that they did ask you to leave. I put it to you that your FOB was cancelled and your key card removed.

[Kosta Kondratenko]

Does that mean they have the right to do that?

[Judge]

Nobody's asking you that. Ms Gorick is saying, was that the case? Was your FOB cancelled or your key card cancelled and the FOB removed?

[Kosta Kondratenko]

So you say not?

[Prosecution]

Did you use your FOB to enter the property?

[Kosta Kondratenko]

I... I don't remember. I don't remember.

I put it to you that you didn't. Okay, well, even if I didn't, it's... I don't...

Okay, fine. Okay, I didn't use my FOB to enter the property.

[Judge]

No, you don't remember.

[Kosta Kondratenko]

Yeah. So you snuck into the property?

[Judge]

That's not what he said. He said he didn't remember.

[Prosecution]

Sorry. I thought he said it just then. Sorry.

Thank you. So you knew at 8.40pm on the 23rd of October of 2023 that the property had told the police that you'd been evicted?

[Judge]

He didn't know that. How did he know that?

[Prosecution]

I put it to you that the police said multiple times to you before they took you to the watch house that you'd been evicted.

[Judge]

He disagreed with you about that already. He put it to him multiple times, told evicted from that address by the manager and then told the same thing by the police and he says no.

[Prosecution]

Thank you. Do you? I beg your pardon.

I didn't bring my display up because I didn't do that.

[Judge]

Even if they do, your case is closed. Only by leave. I'm not going to give it to you.

[Prosecution]

Thank you. Sorry. Thank you.

The cracks are good. You were aware that the police had banned you from entering the Surfers Paradise safe house precinct?

[Kosta Kondratenko]

No, I've already said that.

[Prosecution]

As of 3.40pm?

[Kosta Kondratenko]

Yes, I've already said that.

[Prosecution]

You got on a tram and you returned to the Surfers Paradise safe house precinct?

[Kosta Kondratenko]

I returned to my home.

[Prosecution]

You say you returned to your home. You had no real lease, did you?

[Kosta Kondratenko]

No, I didn't. And I have the documentation. I have the document to prove it, which I've showed you already and I've shown you.

[Prosecution]

Could I look at that copy? I was never provided with one myself.

[Kosta Kondratenko]

Oh, okay.

[Prosecution]

Thank you. Thank you. This is just a notice to leave a room in accommodation.

Do you not have a copy of a lease?

[Kosta Kondratenko]

Even if he does.

[Prosecution]

You stated that the hostel has a minimum of two months period?

[Kosta Kondratenko]

Minimum of two months, yes.

[Prosecution]

So this could just be a practice that they adopt in order to remove people from the hostel, could it not?

[Kosta Kondratenko]

An illegal practice abetted by you guys, since you guys didn't want to listen to my story,

and then you just walk in there with guns?

[Judge]

He couldn't answer that anyway. How could he know what their practice is?

[Kosta Kondratenko]

He doesn't have any knowledge of any of this.

[Judge]

You need to be more specific.

[Kosta Kondratenko]

Thank you.

[Prosecution]

Do you agree that it says here on the minimum notice periods you were to accept that they were in fact in play? For a serious breach, you could be asked to leave room in accommodation, it states, immediately.

[Kosta Kondratenko]

Yes, but what was the serious breach out of curiosity?

[Judge]

That doesn't appear to be, he's not accepting that. He hasn't accepted that in his evidence. He hasn't accepted that he's been asked to leave immediately.

He's in fact not accepted that at all.

[Prosecution]

I'm just asking if he's aware that that is.

[Kosta Kondratenko]

I'm aware that's what they've written down. I'm aware that's what they've written down, but I don't understand what I actually did to garner that serious breach, because that document was given to me before the public nuisance charge was given to me.

[Prosecution]

Do you agree that you were given five warnings by the hospital?

[Kosta Kondratenko]

No, that's not true at all. Where are you getting that information?

[Judge]

Don't worry about where it's coming from, just answer the question.

[Prosecution]

You mentioned that you were breached for leaving a cup out.

[Kosta Kondratenko]

Yes.

[Prosecution]

So that was one breach, was it not?

[Kosta Kondratenko]

Under the Tendencies Act, leaving a cup out is not something that constitutes a serious breach, that constitutes fraud.

[Prosecution]

I'm asking you, did the hospital breach you for that, whether it's correct by law or not?

[Kosta Kondratenko]

No, they did not give me a proper breach notice, which is required under the Residential Tendencies Act.

[Judge]

Yes or no? You're not helping yourself by all of these launching into lengthy explanations.

[Kosta Kondratenko]

So I got an invoice and I got a photo saying that I had a cup, and that I had $20 due because I washed the cup, but I didn't put it away. Now, that is not a breach, that is a fine, okay? People can't kick somebody out in Australia because they washed the cup and they put it in legislation.

[Judge]

Look, Mr Kondratenko, just answer the questions that you're being asked. That's all you're there to do. Go ahead, Ms Gorman.

[Prosecution]

Thank you. You said you sent a photo and a fine. Did the hospital owners, Chris and Sandy, say that that was a breach?

[Kosta Kondratenko]

No.

[Prosecution]

And were you issued more than one of these cups?

[Kosta Kondratenko]

Yes, there were a couple of retaliatory fines after I started asking questions, yes. How many would you say? Maybe five, six fines of that nature, not leaving a bowl out or something like that.

Thank you, I've already asked about it.

[Prosecution]

Thank you, sorry, one second. Did you at any time apply to the Commissioner of the Police to amend or cancel the police banning notice?

[Kosta Kondratenko]

You mean on the same day that I got it?

[Judge]

At any time. Did you apply to have the banning notice set aside?

[Kosta Kondratenko]

No, I didn't because I was homeless and I had to go back to my home.

[Prosecution]

Were you aware that you could apply to the Commissioner of Police to amend or cancel the banning notice?

[Kosta Kondratenko]

It didn't occur to me at that stage, because I had been made homeless by the police.

[Prosecution]

But you say that you looked into the research that you were allowed to...

[Judge]

It doesn't really matter, does it, Ms Gorick? Where is this going?

[Prosecution]

Well, there's steps one could take, say...

[Judge]

And why would that be relevant to now the contravention of the banning notice on the very day that it was issued?

[Prosecution]

Because you should take those steps before returning into a safe NAC precinct. And they're an option to you, in order to be able to return to your residence. I would like to answer that.

[Judge]

No.

[Prosecution]

Thank you. Thank you, no further questions.

[Judge]

All right. Mr Kontratenko, now this is your opportunity, if you need to, to say anything in response to anything that Ms Gorick has asked you. It's a matter for you whether or not you do.

But you are going to make a closing statement anyway. So did you want to add anything else at the moment, or do you just want to make your closing statement?

[Kosta Kondratenko]

I just want to say that there's been a narrative painted on me.

[Judge]

No. That's not a matter arising out of cross-examination. Whatever you want to say, it has to arise out of cross-examination.

Otherwise, you can make general submissions from the bar table.

[Kosta Kondratenko]

Okay. So these are just points that the prosecution has asked me?

[Judge]

Yeah, if you think you need to clarify any of that.

[Kosta Kondratenko]

Yeah. So I just wanted to clarify that this is not a hostel. Okay?

Hostels do not take bonds.

[Judge]

All right, no. You don't get to lunch and do what you think hostels are and are not.

[Kosta Kondratenko]

I understand. I guess I'll... I would just...

I would just say I have a bond budget with the ITA.

[Judge]

Okay, okay. Thank you. Leave those documents there.

[Prosecution]

Yeah, sure. I need to return to...

[Judge]

Thank you. Jenna, can you grab those things? Thank you.

You can return to the bar table now.

[Kosta Kondratenko]

Yeah, of course.

[Judge]

So, Mr Kontratenko, this is now your opportunity to make a closing statement to the court. What that is is basically a statement as to why you should be found not guilty. What you think you can say about that.

I do not want you to launch into a whole lot of things that you don't know anything

about. Okay, I agree. Okay, stand up.

Stand up.

[Kosta Kondratenko]

Okay, yeah, sure. So, I believe I should be found not guilty on the contraband banning notice charge because I was in my home. I believe Senior Sergeant Mark Barrow was not within his jurisdiction to ask me to leave.

I had a notice to leave that was not for that day. And... The police did not...

In the brief of evidence, I clearly told the police that, the Senior Constable that, and he said, I don't care. And I don't believe that the police are able to make their own laws and do what they want to do just because they have a gun and a badge and they can just go in and ram, you know, go into places. And I believe I acted lawfully within the law.

And... You know, I'm 36 years old. I've never been in trouble with the police in any criminal charge.

I just wanted to go back to my home and I have a right to be in my home and the police don't have a right to go in there, I believe, and tell me that I have to leave and they don't care about the law. That's all.

[Judge]

All right, thank you. Ms Garrick.

[Prosecution]

Thank you, Your Honour. My submission to prosecution has proven beyond a reasonable doubt that at 3.40pm on the 23rd of October of 2023, that the defendant was issued with a police banning notice. You heard from Senior Constable Mark Barrows that he, as per the legislation, sought approval from someone of a sergeant rank whose badge number is placed on the banning notice.

Your Honour can see that there is a statement of service that Mr Barrows spoke to as well, and that is accepted by the defendant that he was served the initial police banning notice whilst at Southport Watch House. Your Honour has heard evidence that police were then called back to the property and they returned at approximately 8.24pm on the 23rd of October of 23 to 76 Apple Street in Surfers Paradise, where they have found the defendant within the parameters of the Surfers Paradise safe night precinct. They therefore affected an arrest.

Your Honour has heard from Senior Constable Mark Barrows as to why he had the authority to issue the initial police banning notice, given the defendant's conduct earlier

on in the day, and that is under 602C, and that this was properly effected, that the police banning notice was explained to the defendant. Your Honour has heard a defence that the defendant states that it is his residence, it's the prosecution's position that Your Honour has heard evidence that it is a short-term holiday let accommodation, such as a hotel, and that they can withdraw authority as they did to the police. They told the police that he was not welcome there.

Your Honour has heard that the police acted on that information, that they confirmed that they were in fact being told by the managers of the vicinity that Mr Contredanco could not be on the property. Your Honour has not been provided with any evidence by the defendant, such as a driver's licence with the address on it, such as a letter to the occupant with his name and that address on it. There is no evidence before the court to suggest that that is his residence.

Your Honour has been handed a notice to leave by a company or business that offers residential terms to people to stay there. There's nothing to suggest that that is his home residence. The legislation speaks to the home residence as being an exemption of attending.

Your Honour has heard that the defendant took the tram and got off the tram at Cabell Avenue and Surfers Paradise, which is in the Safe Night precinct. In my submission, it is not a lawful justification or excuse for Mr Contredanco to return to that property. He was made well aware by both police and the managers, by evidence of the police, that he was not welcome.

He was taken to the watch house where he was given the ticket for the public nuisance and also given a copy of the initial police banning notice. He does not contest service. He does not contest, but he did not understand the banning notice.

He states that he chose to ignore the banning notice in order to return to his property. It's my overarching submission that it is not his home and therefore the legislation... Just find the section for you, Your Honour.

602J, actions not prohibited by notice do include a respondent for the notice from entering or remaining in the respondent's residence. In my submission, that was not his residence. He also entered the Surfers Paradise Safe Night precinct at Cavill Avenue, which is not his residence.

And in my submission, he is in breach of the police banning notice and that the police acted well within their powers in issuing the banning notice and also in bringing the charge of the contravention of the police banning notice. As the police acted on the words of the managers of Solack House at 76. Apple Street, Surfers Paradise, and if there is any contention as to whether the eviction is lawful, that is for QCAT to decide.

That is not an issue that is to be ventilated in this court and it can't be properly without a representative of the RTA to give evidence here today that that form to leave means that that person now is a resident of that property. It would be almost impossible to even take judicial notice of what that form means, that it would need someone here to explain that today, that that does mean that he is a resident.

[Judge]

No, I don't think you've actually proved that he was evicted. Anyway. No, but...

He was arrested. He didn't accept that he was evicted.

[Prosecution]

I'm saying it's not his home residence whether he's evicted or not. That's what you say. I beg your pardon.

Sorry.

[Judge]

That's all right. Is that all? Thank you.

All right. Stand up, thanks. Mr Kontradenko, I'm finding you not guilty today.

I'm not satisfied that the prosecution has properly proven that this address was not your residence. I am deeply concerned that the legislation as it stands really does have to take into account whether or not a person is at an address that is their residence. Section 179, to the extent that it might be of assistance, defines residence.

That's the section of the Police Powers and Responsibilities Act. For a person includes a place at which the person regularly sleeps. And section 602 capital J states that a police banning notice does not prevent a respondent from entering or remaining in the respondent's residence.

I'm not satisfied that that has been properly negatived. I'm also not satisfied that it was your obligation to provide to the court any particular driving licence or letter to prove that that was in fact your residence. You did raise that question with the officer on the day.

You have put to the court that you were on notice to leave, but that the notice to leave was for the following day, not for the actual day when you were arrested and provided with a banning notice. In your evidence, you stated on more than one occasion that it was your home. In your cross-examination, you rejected any assertion that was put to you that it was not your home.

And so I am not satisfied beyond a reasonable doubt that it is not your residence. And for that reason, you are not guilty. Those are my orders.

Is there anything further? No. You're free to go.

Thank you, Your Honour. May I be excused? Yes, thanks.